

Sharmila Begum v. Purvanchal Vidhut Vitrana Nigam Ltd. & Anr.

High Court of Judicature at Allahabad · Division Bench · 3 January 2025 · 2025:AHC:1553-DB · Writ-C No. 43318 of 2024 · **Writ disposed of; petitioner relegated to clause 6.5 with stay of coercive recovery pending that application.**

HEADNOTE

A consumer's writ against recovery of unpaid electrical dues was disposed of without examining the merits. The Division Bench held that the dispute was more appropriately for the competent authority under clause 6.5 of the U.P. Electricity Supply Code, 2005, directed a reasoned order within six weeks if the consumer approached within a week, and stayed coercive action until that application was decided.

FACTUAL SUMMARY

Sharmila Begum filed a writ petition in the Allahabad High Court challenging recovery initiated against her by Purvanchal Vidhut Vitrana Nigam Ltd. for non-payment of electrical dues. Counsel for the distribution licensee submitted that the nature of the dispute was more appropriately for examination by the competent authority if the petitioner approached the forum under clause 6.5 of the U.P. Electricity Supply Code, 2005, rather than in writ jurisdiction.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection under clause 6.5

HOLDING

A writ challenging recovery of unpaid electrical dues need not be examined on merits where the dispute can more appropriately be raised before the competent authority under clause 6.5 of the U.P. Electricity Supply Code, 2005. The consumer was permitted to approach the second respondent under that clause within a week; the authority was directed to pass a reasoned order within six weeks, and coercive action was stayed until disposal of the application. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY AND ALLEGED UNPAID ELECTRICAL DUES

The Court did not decide whether the dues were payable or the recovery was valid, relegating the petitioner to clause 6.5. ¶ 1